

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stephen Clarke	Team: Team # 7	CCRB Case #: 200508020	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Tuesday, 07/12/2005 7:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/12/2007	Precinct: 110		
Date/Time CV Reported Thu, 07/14/2005 1:23 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 07/14/2005 1:23 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Perez	27862	930939	110 PCT
2. POM Paulo Velasquez	11763	935922	FM DIV

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Edgar Gomez	23107	930234	110 PCT
2. SGT Charles Minch	03481	921598	110 PCT
3. POM Jae Moon	13296	935342	110 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Paulo Velasquez	Abuse: PO Paulo Velasquez threatened to arrest § 87(2)(b) and § 87(2)(b) § 87(2)(b)	A . Exonerated
B . POM Paulo Velasquez	Off. Language: PO Paulo Velasquez made remarks to § 87(2)(b) and § 87(2)(b) based upon ethnicity.	B . Unsubstantiated
C . POM Paulo Velasquez	Force: PO Paulo Velasquez used physical force against § 87(2)(b)	C . Unsubstantiated
D . POM Paulo Velasquez	Force: PO Paulo Velasquez used physical force against § 87(2)(b)	D . Unfounded
E . POM Paulo Velasquez	Force: PO Paulo Velasquez used physical force against § 87(2)(b)	E . Unsubstantiated
F . POM Michael Perez	Discourtesy: PO Michael Perez spoke obscenely and rudely to § 87(2)(b)	F . Exonerated
G . POM Michael Perez	Discourtesy: PO Michael Perez spoke obscenely and rudely to § 87(2)(b)	G . Unsubstantiated

Synopsis

On July 12, 2005 at approximately 7:30 p.m., § 87(2)(b) and § 87(2)(b) were sitting on the front stoop of § 87(2)(b)'s home, which is located at § 87(2)(b) talking with § 87(2)(b). At this time, § 87(2)(b)'s young child was riding his tricycle with § 87(2)(b)'s young child a driveway on the side of § 87(2)(b). § 87(2)(b) the owner of the home located at § 87(2)(b) asked the adults to remove the children from the driveway. § 87(2)(b) PO Paulo Velasquez of the 114th Precinct, then exited § 87(2)(b)'s home. Though PO Velasquez was off-duty and dressed in civilian clothes, he invoked his authority as a police officer by speaking to § 87(2)(b) and § 87(2)(b) and saying something along the lines of "Get the fuck out of here before you spend the night in jail" (Allegation A). PO Velasquez then became involved in an argument with § 87(2)(b) and § 87(2)(b) and told § 87(2)(b) to get his "white trash piece of shit wife" off § 87(2)(b) (Allegation B). PO Velasquez allegedly then punched § 87(2)(b) in the face causing § 87(2)(b) to fall to the ground (Allegation C). Once § 87(2)(b) was on the ground, PO Velasquez allegedly punched him repeatedly in the back of the head (Allegation D). § 87(2)(b) then jumped on PO Velasquez's back and began to strike him. PO Velasquez allegedly responded by punching § 87(2)(b) in the face causing § 87(2)(b) to fall to the ground. § 87(2)(b) then jumped on PO Velasquez's back once again. PO Velasquez allegedly responded by lifting her off the ground and pushing her away causing her fall onto her back (Allegation E). While PO Velasquez was struggling with § 87(2)(b) and § 87(2)(b) § 87(2)(b) approached two police officers, later identified through this investigation as PO Edgar Gomez and PO Michael Perez of the 110th Precinct. At this time, PO Gomez and PO Perez were responding to an unrelated radio run on § 87(2)(b). PO Gomez and PO Perez responded to the scene of the altercation and separated PO Velasquez from § 87(2)(b) and § 87(2)(b). PO Perez then allegedly told § 87(2)(b) to "shut the fuck up" and told § 87(2)(b) to "get the fuck back" because he was bleeding (Allegations F and G). Two officers, later identified through this investigation as Sgt. Charles Minch and PO Jae Moon, later responded to the scene and all parties involved in the altercation were transported back to the 110th Precinct for questioning. § 87(2)(b) and § 87(2)(b) filed § 87(2)(b) charges against PO Velasquez, § 87(2)(g). The Patrol Borough Queens North Investigations investigated the incident and closed the case as unsubstantiated.

It is recommended that Allegation (A) be exonerated § 87(2)(g). It is recommended that Allegation (B) be unsubstantiated § 87(2)(g). "It is recommended that Allegation (C) be unsubstantiated § 87(2)(g). It is recommended that Allegation (D) be unfounded § 87(2)(g). It is recommended that Allegation (E) be unsubstantiated § 87(2)(g). It is recommended that Allegation (F) be exonerated § 87(2)(g). It is recommended that Allegation (G) be unsubstantiated § 87(2)(g).

Summary of Complaint

§ 87(2)(b) provided the following statement to medical personnel at the § 87(2)(b) at § 87(2)(b) (enc. 5): § 87(2)(b) told medical personnel that she had been assaulted by an off-duty police officer, who was later identified through this investigation as PO Paulo Velasquez. § 87(2)(b) stated that PO Velasquez became verbally abusive to § 87(2)(b) her husband, when PO Velasquez confronted him about the § 87(2)(b) children playing in the alley-way. PO Velasquez physically attacked § 87(2)(b) and § 87(2)(b) tried to assist § 87(2)(b). PO Velasquez hit § 87(2)(b) in the face and pushed her to the ground. § 87(2)(b) denied losing consciousness and stated that she had reported the incident to the police.

§ 87(2)(b) was interviewed by Lt. Howley of the Patrol Borough Queens North Investigations Unit on July 13, 2005. § 87(2)(b) and her husband, § 87(2)(b) were interviewed together by A.D.A. James Leander at the Queens District Attorney's Office on July 21, 2005 (enc. 6). § 87(2)(b) also provided a statement when she filed a complaint with the CCRB on July 14, 2005 (enc. 7b). § 87(2)(g)

§ 87(2)(b) :

On July 12, 2005 at around 7:30 p.m., § 87(2)(b) and § 87(2)(b) were sitting on § 87(2)(b)'s, § 87(2)(b)'s sister's, stoop talking. § 87(2)(b) and § 87(2)(b) child, § 87(2)(b) was out riding his tricycle with § 87(2)(b)'s § 87(2)(b) child, § 87(2)(b) § 87(2)(b). The kids were riding their tricycles up and down the driveway of two adjoining houses, § 87(2)(b) and § 87(2)(b). A man in his sixties, later identified as § 87(2)(b) came out of § 87(2)(b). The man yelled at § 87(2)(b) and § 87(2)(b) and § 87(2)(b) to "get the fucking kids out of here." § 87(2)(b) then went back into his home. § 87(2)(b) was walking over to get the kids when § 87(2)(b) later identified through this investigation as PO Velasquez, came out of the side of § 87(2)(b). PO Velasquez said, "You heard him. Get the fuck out of here before you spend the night in jail." § 87(2)(b) started arguing with PO Velasquez asking him what his problem was. § 87(2)(b) started yelling and cursing back at PO Velasquez saying things such as "what the hell" and "what the fuck" is your problem. § 87(2)(b) further stated that while § 87(2)(b) was screaming at the top of his lungs, PO Velasquez was making his nasty remarks in a "low key" tone. § 87(2)(b) and PO Velasquez were "up in each other's face." § 87(2)(b) stated that he and PO Velasquez were standing on the driveway to § 87(2)(b). § 87(2)(b) stated that PO Velasquez told § 87(2)(b) to "get the fucking kids off § 87(2)(b) or you are going to spend the night in jail." PO Velasquez threatened § 87(2)(b) several times, repeatedly stating that § 87(2)(b) would go to jail. § 87(2)(b) became scared and she ran across the street to two officers later identified through this investigation as PO Edgar Gomez and PO Michael Perez. PO Gomez and PO Perez told § 87(2)(b) that they were responding to another call, but that they would come over as soon as they were done. § 87(2)(b) returned to § 87(2)(b) and PO Velasquez who were still verbally arguing.

§ 87(2)(b) had his hand up in front of his chest between he and PO Velasquez; however, he was not touching PO Velasquez. PO Velasquez told § 87(2)(b) to get himself and his "white-trash piece of shit wife" off § 87(2)(b). § 87(2)(b) asked PO Velasquez what the "fuck was his problem" and § 87(2)(b) continued screaming and cursing at PO Velasquez. PO Velasquez called § 87(2)(b) "white trash" again and § 87(2)(b) told PO Velasquez that he was a "fucking asshole." § 87(2)(b) stated that PO Velasquez took his glasses off at this point. § 87(2)(b) thought that PO Velasquez did this as an indication that he (PO Velasquez) wanted § 87(2)(b) to hit him. § 87(2)(b) told § 87(2)(b) not to touch him because at this point she was suspecting that PO Velasquez was a police officer. § 87(2)(b) did not touch PO Velasquez. However, PO Velasquez punched § 87(2)(b) in the nose with a closed fist. This caused § 87(2)(b)'s nose to bleed. § 87(2)(b) fell on the ground on his stomach. § 87(2)(b) had knee surgery prior to this incident and he was worried that he would hurt his knee again so he was holding onto his leg. PO Velasquez got on § 87(2)(b)'s back and began punching § 87(2)(b) in the back of the head. § 87(2)(b) stated that she would estimate that PO Velasquez hit her husband in the back of his head 10 times. Upon further questioning, § 87(2)(b) stated that at some point, § 87(2)(b) turned to try and get up and PO Velasquez hit the front of his face. § 87(2)(b) did not strike PO Velasquez. § 87(2)(b) was yelling, "enough already enough." § 87(2)(b) jumped on PO Velasquez's back in an attempt to get him off of her husband. § 87(2)(b) yelled at PO Velasquez to get off of § 87(2)(b) and she slapped the back of PO Velasquez's head with an open fist. PO Velasquez turned around point and punched § 87(2)(b)'s left eye. § 87(2)(b) received a black eye from the blow. § 87(2)(b) fell back, but did not fall on the ground.

PO Velasquez got back onto § 87(2)(b)'s back and began punching him in the back of the head again. § 87(2)(b) got back onto PO Velasquez's back and again attempted to get PO Velasquez off of her husband. § 87(2)(b) was slapping his head and pulling on his shirt. § 87(2)(b) stated that PO Velasquez turned around, grabbed her by the shoulders, picked her up and threw her into the air. § 87(2)(b) landed on her back. § 87(2)(b) stated that PO Velasquez stopped hitting § 87(2)(b) for a short time and looked up. PO Velasquez got back on top of § 87(2)(b). § 87(2)(b) never hit PO Velasquez and § 87(2)(b) at no point was the physical aggressor.

At some point during this altercation, § 87(2)(b) ran over to PO Gomez and PO Perez and told them that the argument had turned physical and that they had to come immediately. PO Velasquez did not stop hitting § 87(2)(b).

§ 87(2)(b) even when PO Perez and PO Gomez arrived. PO Perez and PO Gomez pushed PO Velasquez off of § 87(2)(b). § 87(2)(b) got off of the ground and PO Velasquez went over and spoke with PO Gomez and PO Perez. PO Velasquez and PO Perez walked a little bit away and started talking. When they came back, PO Velasquez got on his cell phone and made a phone call. § 87(2)(b) stated that she was very angry because she felt that PO Gomez and PO Perez were taking the side of PO Velasquez. § 87(2)(b) and § 87(2)(b) were trying to tell PO Gomez and PO Perez what happened, but PO Perez and PO Gomez were not listening to them. Either PO Gomez or PO Perez got on the radio and about 10 or 15 more police officers showed up. § 87(2)(b) stated that she was very upset and that she was yelling at PO Perez and PO Gomez to listen to her. § 87(2)(b) stated that she was frustrated and she said to PO Gomez, "You aren't listening to me Arod." § 87(2)(b) thought that PO Gomez looked like Alex Rodriguez. PO Perez told her that this was not his name and told her to "shut the fuck up." § 87(2)(b) was gushing blood from his nose and PO Perez told § 87(2)(b) to "get the fuck away from me, you are bleeding everywhere." § 87(2)(b) originally stated that almost all of the officers there told her to "shut the fuck up." However, she later changed her statement stating that most of the officers told her to shut up but that only PO Perez used profanity. § 87(2)(b) viewed a photo array containing photographs of both PO Perez and PO Gomez. § 87(2)(b) identified PO Perez as the officer who told her "shut the fuck up" and she identified PO Perez as the officer who told her husband to "get the fuck away" because he was bleeding.

EMS arrived on the scene and examined both § 87(2)(b) and § 87(2)(b). § 87(2)(b) and § 87(2)(b) decided not to go to the hospital right away because the officers told them that they needed to come to the Precinct and EMS told them that it would be okay if they went to the hospital the following day. § 87(2)(b) and § 87(2)(b) went to the 110 Precinct and were interviewed by IAB. § 87(2)(b) and § 87(2)(b) went to § 87(2)(b) the following day and received treatment for their injuries.

§ 87(2)(b)'s sister, and § 87(2)(b) § 87(2)(b)'s nephew both witnessed the whole incident.

§ 87(2)(b) provided a statement to medical personnel at the § 87(2)(b) at § 87(2)(b) (enc. 9). § 87(2)(b) was interviewed by Lt. Howley of the Patrol Borough Queens North Investigations Unit on July 13, 2005. § 87(2)(b) and her husband, § 87(2)(b) were interviewed together by A.D.A. James Leander at the Queens District Attorney's Office on July 21, 2005 (enc. 6). § 87(2)(g)

§ 87(2)(b) recalled that he started walking away from PO Velasquez after arguing with him for some time. At this point, PO Velasquez called § 87(2)(b) "white trash" for a second time. In response, § 87(2)(b) turned around and began cursing at PO Velasquez. PO Velasquez punched § 87(2)(b) in the nose with a closed fist causing § 87(2)(b)'s nose to bleed. § 87(2)(b) did not touch PO Velasquez. § 87(2)(b) fell to the ground on his side. § 87(2)(b) had knee surgery prior to this incident and he was worried that he would hurt his knee again so he was holding onto his leg. PO Velasquez got on § 87(2)(b)'s back and punched § 87(2)(b) in the back of the head four or more times. § 87(2)(b) stated that he received contusions in the back of his head from the blows. § 87(2)(b) did not hit back. § 87(2)(b) yelled, "Enough already! Enough!" § 87(2)(b) started yelling at PO Velasquez to get off of § 87(2)(b). § 87(2)(b) thought that § 87(2)(b) became physical with the officer in an attempt to get him off of him. However, § 87(2)(b) had his head facing towards the ground so he could not see exactly what § 87(2)(b) was doing. PO Velasquez got off of § 87(2)(b) briefly. § 87(2)(b) looked up and PO Velasquez punched § 87(2)(b)'s left eye. § 87(2)(b) stepped backward. PO Velasquez got back onto § 87(2)(b)'s back and began punching him in the back of the head again. § 87(2)(b) could hear § 87(2)(b) yelling at PO Velasquez to get off of § 87(2)(b). PO Velasquez ceased again for a brief time and § 87(2)(b) looked up. He saw § 87(2)(b) flying through the air and land on her back. After § 87(2)(b) landed, PO Velasquez got back on top of § 87(2)(b). At this point, two officers, later identified as PO Gomez and PO Perez arrived. § 87(2)(b) never hit PO Velasquez and § 87(2)(b) at no point was the physical aggressor. PO Velasquez did not stop hitting § 87(2)(b) even when PO Perez and PO Gomez arrived.

§ 87(2)(b) viewed a photo array containing photos of both PO Gomez and PO Perez. § 87(2)(b) identified PO Gomez as one of the first two officers to arrive on the scene, but he did not identify PO Perez. PO Perez and PO Gomez pulled PO Velasquez off of § 87(2)(b). § 87(2)(b) got off of the ground and PO Velasquez went over

and spoke with PO Gomez and PO Perez. PO Velasquez then got on his cell phone. § 87(2)(b) was very angry because he felt that PO Gomez and PO Perez were taking PO Velasquez's side. § 87(2)(b) and § 87(2)(b) were trying to tell PO Gomez and PO Perez what happened, but the officers were not listening to them. Either PO Gomez or PO Perez got on the radio and more police officers showed up. § 87(2)(b) was upset and yelling. PO Perez told § 87(2)(b) to "shut the fuck up." § 87(2)(b)'s nose was bleeding and PO Gomez's partner told § 87(2)(b) to "get the fuck away from me, you are bleeding everywhere."

Results of Investigation

§ 87(2)(b) was interviewed by Lt. Howley of the Patrol Borough Queens North Investigations Unit on July 13, 2005. § 87(2)(g)

§ 87(2)(b) recalled that PO Velasquez exited his home a few minutes after § 87(2)(b) entered his home. When he came out, PO Velasquez told everyone to get the kids off of the property. § 87(2)(b) refused saying that the kids were not doing anything wrong. PO Velasquez told him to "get out of here if you know what is good for you or you will go to jail." § 87(2)(b) told the kids to go stand with their mother. PO Velasquez kept asking § 87(2)(b) to leave and § 87(2)(b) kept refusing. PO Velasquez threatened § 87(2)(b) by telling him that he could spend a night in jail. § 87(2)(b) ran across the street to where PO Perez and PO Gomez were. However, § 87(2)(b) returned without the officers with her. § 87(2)(b) and PO Velasquez came closer together and § 87(2)(b) was screaming that he did not have to leave. Around this time, the wife of the older gentleman came out of § 87(2)(b) and tried to get PO Velasquez to calm down and leave the situation. § 87(2)(b) could not hear exactly what she said to PO Velasquez because she was speaking in Spanish. However, the woman's body language and tone showed that she was clearly trying to get PO Velasquez to leave § 87(2)(b) alone. PO Velasquez did not listen and the woman returned inside. PO Velasquez told § 87(2)(b) that they were "fucking white trash." § 87(2)(b) spat back that PO Velasquez was a "fucking spic." At this point, § 87(2)(b) was about 10 feet from § 87(2)(b) and PO Velasquez, it was light outside, and nothing was obstructing her view.

PO Velasquez took off his glasses and again told § 87(2)(b) that if he didn't leave that he would spend a night in jail. PO Velasquez moved even closer to § 87(2)(b) and § 87(2)(b) put his hands up to protect himself from PO Velasquez. PO Velasquez said, "If you don't want to spend the night in jail, get the fuck away." PO Velasquez then pushed § 87(2)(b) in the chest with two hands and punched § 87(2)(b) in the left upper arm. § 87(2)(b) fell on the ground face forward. Either right before or right after § 87(2)(b) fell, PO Velasquez punched § 87(2)(b) in the nose with a closed fist. § 87(2)(b) was trying to get up. PO Velasquez got on top of § 87(2)(b) and started hitting him in the back. § 87(2)(b) was screaming at PO Velasquez to get off of him. § 87(2)(b) jumped on PO Velasquez's back and tried to get him off of § 87(2)(b). § 87(2)(b) slapped PO Velasquez's back and pulled on him. PO Velasquez turned around and with a closed fist punched § 87(2)(b) in the left eye. § 87(2)(b) started slapping at PO Velasquez again. § 87(2)(b) ran across the street screaming at two officers, later identified as PO Perez and PO Gomez, to come over. PO Perez and PO Gomez saw her and they drove over immediately. § 87(2)(b) arrived back at the scene first. When she got there § 87(2)(b) was still on top of PO Velasquez slapping at his back and yelling at him to get off of her husband. At this time, PO Velasquez lifted himself up, grabbed § 87(2)(b)'s upper body and pushed her. § 87(2)(b) landed on her back on the sidewalk. PO Perez and PO Gomez got out of the car at this time. At this time, PO Velasquez was no longer hitting § 87(2)(b). However, PO Velasquez was on top of § 87(2)(b) and had him pinned to the sidewalk. There was no point during this entire interaction that § 87(2)(b) fought back.

PO Perez and PO Gomez pulled PO Velasquez off of § 87(2)(b) at this time. § 87(2)(b) was screaming and "ranting and raving." PO Perez and PO Gomez helped him up at this time. § 87(2)(b) was bleeding from his nose and screaming for someone to bring him paper for his nose. PO Perez told § 87(2)(b) "I don't want your blood on me, stay the fuck away from me."

PO Perez and PO Gomez went over to the patrol car to radio something in. PO Velasquez approached PO Perez and PO Gomez and started speaking with them. PO Velasquez spoke with them for between five and seven minutes. When PO Gomez and PO Perez returned to the § 87(2)(b)'s, § 87(2)(b) was still bleeding from the nose and § 87(2)(b) was bleeding from the elbows. They were trying to tell PO Gomez and PO Perez what happened, but PO Perez and PO Gomez were not willing to listen to the § 87(2)(b)'s side of the story. Both PO Perez and PO

Gomez told § 87(2)(b) and § 87(2)(b) to “shut the fuck up.” However, PO Perez was the officer who had a nastier attitude. They were told that a higher-ranking officer would come and that they could talk to him. An officer in a white shirt came and § 87(2)(b) and § 87(2)(b) told him what happened. EMS came and looked at § 87(2)(b) and § 87(2)(b). They all went back to the Precinct and gave their statements again at the Precinct.

§ 87(2)(b) § 87(2)(b) *was interviewed at the CCRB on September 23, 2005 (enc. 13a-c):*

On July 14, 2005, § 87(2)(b) was in his living room on § 87(2)(b) when he heard § 87(2)(b) his uncle, arguing with an unknown person. § 87(2)(b) went outside and saw § 87(2)(b) and § 87(2)(b), later identified as PO Velasquez, arguing in the driveway. § 87(2)(b) did not know what they were arguing about. § 87(2)(b)'s younger brother and his cousin were crying so he got them and brought them inside. Looking out through his living room window, § 87(2)(b) saw PO Velasquez punch § 87(2)(b) in the face and then push § 87(2)(b) onto the ground. § 87(2)(b) fell onto the ground landing on his stomach. § 87(2)(b) went outside at this time and saw § 87(2)(b) lying on the ground on his stomach. § 87(2)(b) was saying “I can’t get up, my knee, help me, help me.” § 87(2)(b)'s mouth was bleeding at this time. PO Velasquez was standing up with one leg on each side of § 87(2)(b)'s body. PO Velasquez was leaning over § 87(2)(b) and he was punching § 87(2)(b) in the back of the head with both hands in closed fists. § 87(2)(b) pulled his hands up to his head to shield himself from the punches. However, § 87(2)(b) never fought back. § 87(2)(b) went up to PO Velasquez. § 87(2)(b) stood behind PO Velasquez and grabbed at Velasquez's back and shoulders in an attempt to get him off of § 87(2)(b). § 87(2)(b) was telling PO Velasquez to get off of § 87(2)(b). PO Velasquez turned around and punched § 87(2)(b) in the face with a closed fist. § 87(2)(b)'s eye was bruised from the punch. § 87(2)(b) fell onto the ground on her back as a result of the impact of the punch. PO Velasquez watched § 87(2)(b) fall and then he went back to § 87(2)(b). § 87(2)(b) got up and went to PO Velasquez. She grabbed at PO Velasquez's back for a second time in an attempt to get him off of § 87(2)(b). PO Velasquez turned around and pushed § 87(2)(b) with two hands in § 87(2)(b)'s shoulder area. § 87(2)(b) fell onto the ground on her back. § 87(2)(b) started yelling for help. PO Velasquez got off of § 87(2)(b) and walked towards § 87(2)(b). § 87(2)(b) stated that he did not know why PO Velasquez just got off of § 87(2)(b) and walked away. When PO Velasquez got up, § 87(2)(b) got up off the ground. § 87(2)(b) walked to § 87(2)(b) and helped him get up. Two uniformed police officers arrived almost immediately after the fighting had ended.

§ 87(2)(b) told the two uniformed officers, later identified through this investigation as PO Gomez and PO Perez, what had happened. PO Perez and PO Gomez just laughed at him. § 87(2)(b) did not hear either of the officers use any profanity.

§ 87(2)(b) *was interviewed at her home on September 12, 2005 (enc. 15a-c):*

§ 87(2)(b) lives at § 87(2)(b). § 87(2)(b) stated that she strongly dislikes the § 87(2)(b) and § 87(2)(b). She said that they constantly block her driveway and that § 87(2)(b)'s § 87(2)(b) son has exposed himself to her § 87(2)(b) daughter and that he has egged her car and broken into her car. She described the family as “not normal” and “crazy.” She said that § 87(2)(b) has threatened her before and that the § 87(2)(b) and the § 87(2)(b) are “always threatening everybody.”

At the time of the incident, § 87(2)(b) was on the second floor of her home and the doors were open. § 87(2)(b) heard an older gentleman who lives at § 87(2)(b) telling § 87(2)(b) that he did not want § 87(2)(b)'s children playing in the alleyway because § 87(2)(b). § 87(2)(b) yelled at the gentleman, “Fuck you, make me.” § 87(2)(b) stated that § 87(2)(b) was threatening the older man. When § 87(2)(b) was asked if § 87(2)(b) ever threatened to do anything to the older man, § 87(2)(b) stated that § 87(2)(b) was cursing but that he did not threaten to hurt the older man. PO Velasquez came out at this time and told § 87(2)(b) not to threaten § 87(2)(b). § 87(2)(b) did not see how the physical fight began because when she walked outside the fight was already underway. § 87(2)(b) said that both PO Velasquez and § 87(2)(b) were standing up when she went outside. She said that she saw § 87(2)(b) hit PO Velasquez in the chest and she saw PO Velasquez hit § 87(2)(b) in the face. § 87(2)(b) was bleeding from his face. § 87(2)(b) was screaming and cursing at PO Velasquez. At this time, § 87(2)(b) intervened in between § 87(2)(b) and PO Velasquez. § 87(2)(b) hit PO Velasquez and PO Velasquez hit § 87(2)(b) while he was attempting to strike § 87(2)(b). At this point, § 87(2)(b) went back into her house. § 87(2)(b) never saw § 87(2)(b) or PO Velasquez on the ground.

§ 87(2)(b) and § 87(2)(b) were interviewed by Det. Fernando Sanchez of the 110 Detective Squad at their home at § 87(2)(b) on July 12, 2005 (enc. 16):

These two interviews were not recorded, but Det. Sanchez completed a complaint-follow up informational summarizing the two interviews together. Det. Sanchez noted that § 87(2)(b) and § 87(2)(b) are sisters. At the time of the incident, § 87(2)(b) and § 87(2)(b) were home when they heard a loud argument coming from outside their front balcony window. They went on to their balcony and observed a male white, later identified through this investigation as § 87(2)(b) and a male Hispanic, later identified through this investigation as PO Velasquez, in an argument. § 87(2)(b) pushed PO Velasquez in the face. PO Velasquez then grabbed § 87(2)(b)'s arm and twisted it behind his back. At this point, a female, later identified through this investigation as § 87(2)(b) jumped on PO Velasquez's back. The group then fell to the ground. § 87(2)(b) was on the bottom of the pile and PO Velasquez was still holding on to his arm. § 87(2)(b) was on top of the pile. PO Velasquez pushed § 87(2)(b) off his back with one hand while holding onto § 87(2)(b)'s arm. The police arrived on the scene and took everyone away without further incident.

Patrol Borough Queens North investigations did not attempt to re-interview § 87(2)(b) and § 87(2)(b). The CCRB attempted to contact both § 87(2)(b) and § 87(2)(b). The undersigned CCRB investigator repeatedly attempted to contact § 87(2)(b) and § 87(2)(b) by phone and sent § 87(2)(b) a letter. The investigator was, however, only able to make contact with § 87(2)(b). On July 10, 2006, the investigator called § 87(2)(b) and she stated that she could not recall the details of the incident in question. § 87(2)(b) recalled that there was a fight, but stated that she was busy taking care of her children at the time. § 87(2)(b) was repeatedly asked for more details and asked who started the fight, but she stated that she did not recall. On July 27, 2006, the investigator called § 87(2)(b) and she stated that she and her sister, § 87(2)(b) were sitting outside at the time of the incident. § 87(2)(b) stated that she did not pay much attention to the incident because she thought the children were the ones fighting. § 87(2)(b) could not recall the adults involved in the fight and she could not recall why they were fighting.

§ 87(2)(b) was interviewed at her home, § 87(2)(b), on September 12, 2005 (enc. 14a-c): § 87(2)(b) is a § 87(2)(b) female and her parents were present for the interview. § 87(2)(b) lives on the second floor of the apartment building across the street from where the incident occurred. At the time of the incident, § 87(2)(b) heard screaming outside and then § 87(2)(b) looked out from her balcony. § 87(2)(b) saw children coming out of § 87(2)(b)'s driveway crying. PO Velasquez was standing behind § 87(2)(b). PO Velasquez was holding § 87(2)(b)'s hands behind § 87(2)(b)'s back and § 87(2)(b)'s chest was up against a fence. § 87(2)(b) went outside. § 87(2)(b) saw that § 87(2)(b) was bleeding from his nose and that § 87(2)(b) had a purple bruise under her eye. PO Velasquez did not have any visible injuries. § 87(2)(b) did not see any of the fighting.

§ 87(2)(b) was interviewed over the phone by Sgt. Liju Thotam of Patrol Borough Queens North Investigations on February 10, 2006 (enc. 18):

§ 87(2)(b) lives at § 87(2)(b) and shares a common driveway with § 87(2)(b) family. At approximately 7:30 p.m. on July 12, 2005, § 87(2)(b) was inside her house when she heard a quarrel occurring outside. During the quarrel, § 87(2)(b) heard § 87(2)(b) say something to the effect of "go ahead, hit me, hit me." § 87(2)(b) stated that there were already police cars on the scene by the time she went to her window. § 87(2)(b) stated that she has never given the members of § 87(2)(b)'s family permission to play in her driveway and had chased them from her driveway before. § 87(2)(b) noted that § 87(2)(b) has a "troubled reputation." She also noted that § 87(2)(b) are wonderful people. § 87(2)(g)

§ 87(2)(b) was interviewed by Lt. Howley of the Patrol Borough Queens North Investigations Unit on July 13, 2005 (enc. 19):

On July 12, 2005 at approximately 7:00 p.m., § 87(2)(b) was having dinner with her family while children were playing on scooters and running in the common driveway on the side of her house. § 87(2)(b)'s husband went to the window and asked the children to go play on the sidewalk. The children continued to play on the driveway.

After dinner, § 87(2)(b) went out in front of his house and asked the parents to supervise the children. The parents started yelling that the children could play where they wanted. § 87(2)(b) went back inside and sat

down at the table with § 87(2)(b) § 87(2)(b) heard the adults outside cursing and getting louder. § 87(2)(b) § 87(2)(b) did not know where her § 87(2)(b), was because he had finished dinner and left.

§ 87(2)(b) heard the adults outside say, “You fucking policeman” and start cursing. § 87(2)(b) also heard someone say, “I’m gonna fucking kill you.” At this point, § 87(2)(b) realized that the people outside were cursing at her son, but she did not hear PO Velasquez say anything. § 87(2)(b) went to side door of her house by the driveway. § 87(2)(b) saw that PO Velasquez was trying to go to the front of the house while a male was yelling at him. A female was also yelling that PO Velasquez was going to be “finished” and that they were going to kill him. § 87(2)(b) walked outside and asked PO Velasquez what was going on. PO Velasquez told § 87(2)(b) that the man just kept yelling and yelling. § 87(2)(b) became scared and went back into her house.

When § 87(2)(b) looked out, she saw the male standing close to § 87(2)(b) and it appeared that the male was going to attack § 87(2)(b). § 87(2)(b) stated that when she looked out the window PO Velasquez’s back was to her and she could not clearly see what was happening. § 87(2)(b) went to the door. § 87(2)(b) saw that PO Velasquez was holding the man’s hands behind him and his knee was on his back. At this point, the female was closer to the street. The female ran and jumped on PO Velasquez causing him to go down on top of the male’s body. The female started punching PO Velasquez. § 87(2)(b) ran and attempted to get between the female and PO Velasquez. § 87(2)(b) could not get between them so she went back to the doorway. PO Velasquez lifted up his body and the female flew to the side of him. The police arrived shortly after. § 87(2)(b) did not see § 87(2)(b) punch the lady. § 87(2)(b) saw that the man’s nose was bleeding when he got up off of the ground.

§ 87(2)(b) was interviewed by Lt. Howley of the Patrol Borough Queens North Investigations Unit on July 13, 2005 (enc. 20):

At the time of the incident, § 87(2)(b) saw two children playing in the common driveway in his back yard without adult supervision. Through the open window, he told the children to go in the front. When the children continued playing, § 87(2)(b) told the complainants that were in front of § 87(2)(b) to take the kids. § 87(2)(b) § 87(2)(b) walked over toward § 87(2)(b) while cursing and saying some to the effect that the children could play there. § 87(2)(b) then went back into the house through the front door. PO Velasquez walked out through the side door. When § 87(2)(b) looked out a few minutes later, he saw § 87(2)(b) partially on the ground with PO Velasquez holding his hand down in the driveway. At this point, the police arrived.

Officer Identification:

PO Paulo Velasquez of the 114th Precinct was identified as the subject officer in this case because he was listed as the perpetrator on the criminal complaint that PO Michael Perez of the 110th Precinct completed regarding the assault of § 87(2)(b) and § 87(2)(b). As noted on the roll call from tour 3 of the 110th Precinct from July 12, 2005, PO Perez was assigned to car SP10 along with PO Edgar Gomez. SPRINT Report § 87(2)(b) showed that car SP10 was the first car to respond to the incident in question. The SPRINT Report also indicated that 110ST1 responded to the scene. According to roll call from tour 3 of the 110th Precinct on July 12, 2005, Sgt. Charles Minch was designated as 110ST1 at the time of the incident and he was working with PO Jae Moon.

As noted above, § 87(2)(b) viewed a photo array containing PO Perez and PO Gomez. § 87(2)(b) identified PO Gomez as one of the first two officers to arrive on the scene, but did not identify PO Perez. In his statement, § 87(2)(b) stated that PO Perez was the officer who told § 87(2)(b) to “shut the fuck up” and was the officer who told him to “get the fuck away” because he was bleeding. As noted above, § 87(2)(b) viewed a photo array containing both PO Perez and PO Gomez. § 87(2)(b) identified PO Perez as the officer who told her to “shut the fuck up” and told her husband

PO Velasquez was interviewed by Sgt. Liju Thotam of the Patrol Borough Queens North Investigations Unit on February 2, 2006 (enc. 21). § 87(2)(g)

PO Velasquez listened to the tape of his previous interview prior to making his CCRB statement. At the time of the incident, PO Velasquez was off duty wearing civilian clothes and prescription glasses. At around 7:30 p.m., PO Velasquez was § 87(2)(b) having dinner with § 87(2)(b) § 87(2)(b) and § 87(2)(b) § 87(2)(b) § 87(2)(b). When he finished eating, he walked downstairs. He then heard noise § 87(2)(b), which is owned exclusively by § 87(2)(b). PO Velasquez opened the side door of § 87(2)(b). The side door opens onto a paved driveway that is jointly owned by the § 87(2)(b)s and the § 87(2)(b) who live next to the § 87(2)(b)s.

When PO Velasquez opened the side door, § 87(2)(b) § 87(2)(b) § 87(2)(b) looked out the side window. They saw two children playing in § 87(2)(b) driveway. § 87(2)(b) § 87(2)(b) told PO Velasquez to go inside. § 87(2)(b) § 87(2)(b) went outside to the front of the house to look for the children's parents. A few moments later, PO Velasquez heard a male yelling at § 87(2)(b) § 87(2)(b) that the children were supervised now and they were not leaving. PO Velasquez went outside through the side door as soon as he heard the yelling. The side door locked behind him. When PO Velasquez went outside, PO Velasquez saw that the man who was yelling was § 87(2)(b) and that he was standing with § 87(2)(b) and § 87(2)(b) PO Velasquez said that he had seen these individuals before § 87(2)(b) but he had never interacted with them. PO Velasquez did not see § 87(2)(b) when he went outside.

PO Velasquez asked § 87(2)(b) if everything was all right. § 87(2)(b) walked towards PO Velasquez and they met in the middle of § 87(2)(b) driveway. § 87(2)(b) started yelling at PO Velasquez something to the effect of, "They are supervised now fuck you we are not leaving." At this point, PO Velasquez could smell alcohol on § 87(2)(b)'s breath. PO Velasquez told § 87(2)(b) to get his children and his wife and to leave § 87(2)(b) property. § 87(2)(b) responded by saying something to the effect of "Fuck you, remove me." § 87(2)(b) said "Oh he is a cop, he is big time." PO Velasquez did not smell alcohol on § 87(2)(b) PO Velasquez said that he had not told § 87(2)(b) that he was an officer prior to her saying this, § 87(2)(b) and § 87(2)(b). PO Velasquez said to § 87(2)(b) "Alright, you know I am a cop, if you don't leave, you are going to spend a night in jail." PO Velasquez said that he was justified in threatening them with arrest because they were trespassing on § 87(2)(b). § 87(2)(b) did not want to leave and he again said to PO Velasquez, "fuck you, remove me now, go ahead you are a cop, do something." § 87(2)(b) became more aggressive and he pushed his face against PO Velasquez's face causing it to touch PO Velasquez's face. § 87(2)(b) then used his face to push PO Velasquez's face backward. The pushing caused PO Velasquez's prescription glasses to slide off, so PO Velasquez took the glasses off. PO Velasquez stepped back, away from § 87(2)(b) § 87(2)(b) approached PO Velasquez once again, threw his hands up, and pushed his face into PO Velasquez's face again.

§ 87(2)(b) was also yelling at PO Velasquez that she knew a lot of people and that PO Velasquez would be "done." PO Velasquez told § 87(2)(b) "Look get your kids, § 87(2)(b), get the fuck out of here goodbye." § 87(2)(b) repeatedly came up to PO Velasquez's face and said that he would not leave until PO Velasquez made him get out of there. When § 87(2)(b) stepped away from him, PO Velasquez tried to walk away by walking out through the front of the driveway because the side door was locked. However, § 87(2)(b) jumped in front of PO Velasquez blocking his path. PO Velasquez attempted to leave several times, but every time he tried to leave, § 87(2)(b) or § 87(2)(b) would block him. After several failed attempts, PO Velasquez turned to § 87(2)(b) who was standing there crying, and asked her to reason with § 87(2)(b) and § 87(2)(b) § 87(2)(b) responded by saying, "Fuck you." § 87(2)(b) was facing PO Velasquez at this time and § 87(2)(b) was still yelling at PO Velasquez. Next, § 87(2)(b) inserted herself in between PO Velasquez and § 87(2)(b) § 87(2)(b) then used two hands to push PO Velasquez in the chest. This push did not move PO Velasquez. § 87(2)(b) saw this and he "went to take a swing" at PO Velasquez. PO Velasquez said that he could not recall if § 87(2)(b) was still in the middle of them when § 87(2)(b) took a swing and that he did not recall where § 87(2)(b) was at this time. When asked how § 87(2)(b) "went to take a swing," PO Velasquez said, "I don't remember how he did it." PO Velasquez said that all he recalled a closed fist coming towards him. When asked to identify which part of his body § 87(2)(b) swung at, PO Velasquez stated that he did not know. Upon further questioning, PO Velasquez said that the punch was coming towards his face.

When PO Velasquez saw § 87(2)(b) swing at him, PO Velasquez grabbed § 87(2)(b) PO Velasquez originally said that he did not recall what part of § 87(2)(b)'s body he grabbed. Upon further questioning, PO Velasquez said that he grabbed the arm that § 87(2)(b) was swinging at him. PO Velasquez turned § 87(2)(b) around. When asked how he turned § 87(2)(b) around, PO Velasquez said that he did not know. PO Velasquez said that he pushed § 87(2)(b) to the ground in order to restrain § 87(2)(b) When asked how § 87(2)(b) landed on the ground, PO Velasquez said that he did not know. PO Velasquez stated § 87(2)(b) ended up on his knees in the driveway with his body bent over a corner stone. PO Velasquez said that he did not know if § 87(2)(b) originally fell on his knees or if § 87(2)(b) changed position to get onto his knees. PO Velasquez stood up and pushed down on § 87(2)(b)'s back. PO Velasquez thought from § 87(2)(b)'s position that § 87(2)(b)'s face was touching the corner stone, but PO Velasquez said that he never actually saw § 87(2)(b)'s

face touching the corner stone. § 87(2)(b) struggled against PO Velasquez in an attempt to get up, but PO Velasquez continued holding § 87(2)(b)

At this time, § 87(2)(b) jumped onto PO Velasquez's back, putting weight onto § 87(2)(b)'s back. § 87(2)(b) then punched § 87(2)(b) in the back of the head two or three times. PO Velasquez did not receive injuries from these punches. PO Velasquez used his right hand to push § 87(2)(b) off of him. PO Velasquez said that he believed he may have pushed § 87(2)(b) in the face, however, he said that he was not sure. PO Velasquez stated that his fist was open when he pushed § 87(2)(b) and he stated that he never punched § 87(2)(b) with a closed fist. PO Velasquez said that while he was pushing § 87(2)(b) off of him, § 87(2)(b) "was trying to fight me...he was trying to get his arms, he was trying to punch me." When asked if § 87(2)(b) ever got his arms out of PO Velasquez's grasp, PO Velasquez said that § 87(2)(b) never got his hands free. However, when further questioned, PO Velasquez said that he did not recall how § 87(2)(b)'s hands were positioned when he pushed § 87(2)(b) away. PO Velasquez did not see what happened to § 87(2)(b)'s body when he pushed her. PO Velasquez did not recall ever seeing § 87(2)(b) on the ground.

PO Velasquez placed both of his hands on § 87(2)(b)'s back again and then looked up. When he looked up, he saw § 87(2)(b) standing at the corner with a patrol car. Two police officers, later identified through this investigation as PO Gomez and PO Perez, exited the patrol car and walked up to PO Velasquez. When the officers came, PO Velasquez released § 87(2)(b) and saw that § 87(2)(b)'s nose was bleeding. PO Velasquez did not see any blood on the ground or on the corner stone. PO Velasquez said that he did not know why § 87(2)(b) was bleeding from the nose and he said that he did not see anything happen that could have caused § 87(2)(b) to fracture his nasal bone. PO Velasquez said that he never punched § 87(2)(b) in the nose. PO Velasquez said that he never hit § 87(2)(b) in any manner in the face. PO Velasquez was shown photographs 4 and 5 (the photographs taken by the § 87(2)(b)'s of § 87(2)(b)'s back). PO Velasquez said that he did not recall seeing anything that could have caused the scrapes to § 87(2)(b)'s back. PO Velasquez was shown photograph 3 (the photograph taken by the § 87(2)(b)'s of § 87(2)(b)'s elbow). PO Velasquez said that he did not recall seeing anything happen that could have caused the scrape to the elbow.

After releasing § 87(2)(b) PO Velasquez identified himself as a police officer, § 87(2)(b) and § 87(2)(b) started yelling at the officers who arrived on the scene. An officer asked § 87(2)(b) and § 87(2)(b) to stand back. § 87(2)(b) said to the officer something to the effect of, "Fuck you, I will fight you too, I will kick your ass too." PO Velasquez never heard any officers use any profanity. Specifically, PO Velasquez never heard an officer say, "shut the fuck up," or "get the fuck away from me."

EMS came to the scene. EMS asked PO Velasquez if he was injured. PO Velasquez noticed that his right ring finger was purple. PO Velasquez said his finger was not purple before this incident. PO Velasquez said that he did not know what caused his finger to become purple. PO Velasquez said that he did not recall a time during this incident when his finger started hurting. EMS told PO Velasquez that his finger looked fine. EMS did not do anything for PO Velasquez's finger. PO Velasquez did not seek any further medical treatment for his finger.

PO Velasquez and § 87(2)(b) were taken back to the precinct. § 87(2)(b) were interviewed that night. PO Velasquez's shield and gun were taken from him and he was placed on modified duty. PO Velasquez said that he never filed charges against § 87(2)(b) and § 87(2)(b) and he never told anyone that he wanted them arrested. PO Velasquez did not make any complaints about § 87(2)(b) taking a swing at him or about § 87(2)(b) hitting him in the back of the head.

PO Velasquez stated that he never called § 87(2)(b) white trash. In addition, PO Velasquez stated that he did not recall any of the civilians using a racial slur. PO Velasquez said that he did not know of any civilians who saw this and he stated that he did not recall any civilians being outside other than the § 87(2)(b) family and § 87(2)(b). PO Velasquez said that he has not talked with anyone about whether they witnessed this incident. PO Velasquez said that he did not know if § 87(2)(b) witnessed this incident.

Memobook of PO Michael Perez (enc. 23a-b):

19:20 10-11 (house alarm) § 87(2)(b)

19:26 90N3 (if service is to be made at a later time)

19:30 Pickup 34 (assault in progress)-§ 87(2)(b) 03:15 EOT

AIDED Reports Completed by PO Michael Perez (enc. 34a-35e):

On the AIDED report that he completed for § 87(2)(b) PO Perez noted that she suffered § 87(2)(b) § 87(2)(b) On the AIDED report that he completed for § 87(2)(b) PO Perez noted that § 87(2)(b) sustained a § 87(2)(b)

Criminal Complaint completed by PO Michael Perez (enc. 36a-e):

§ 87(2)(a) 160.50

PO Michael Perez was interviewed by Sgt. Liju Thotam of the Patrol Borough Queens North Investigations Unit on November 21, 2005 (enc. 37). PO Michael Perez was then interviewed at the CCRB on January 26, 2006. § 87(2)(g)

On July 12, 2006, PO Perez was working with his steady partner PO Edgar Gomez. PO Perez and PO Gomez responded to a house alarm on § 87(2)(b) at 7:20 p.m. When they were exiting their vehicle, § 87(2)(b) came running down the block. § 87(2)(b) told PO Perez and PO Gomez that there was a dispute going on and said that if they did not come “somebody was going to get their ass kicked.” § 87(2)(b) did not have any visible injuries on her. § 87(2)(b) pointed to her house, which was about half a block away. PO Perez looked over and saw the house that she was pointing to, but did not see a fight going on. PO Perez told § 87(2)(b) that they would come over after they finished with their current job. PO Gomez and PO Perez knocked on the door at § 87(2)(b). A woman came to the door. PO Perez and PO Gomez checked her identification to confirm that she lived there. The woman told them that she had accidentally set off the alarm and that she was okay. PO Perez and PO Gomez got back into the car. PO Perez put the car in reverse and backed down the block. When PO Perez looked back, he saw people scuffling in front of the house. PO Perez stated that all he could see at this point was a blur of fighting. When PO Perez and PO Gomez arrived at § 87(2)(b), they got out of the car. PO Perez stated that he would estimate that approximately 3 minutes passed between when § 87(2)(b) told them to come over and when they arrived.

PO Perez said that he saw PO Velasquez, § 87(2)(b) and § 87(2)(b) fighting in the driveway when they arrived. The three looked like they were just getting up from the ground at this time. PO Velasquez was restraining § 87(2)(b) § 87(2)(b) had his back to PO Velasquez and PO Velasquez was facing § 87(2)(b)'s back. PO Velasquez had his arms wrapped around § 87(2)(b) and § 87(2)(b) was moving around in an attempt to get out of the hold. § 87(2)(b) was squatting with his legs bent, but his torso was upright. § 87(2)(b) was standing on the side of § 87(2)(b) and PO Velasquez. § 87(2)(b) was flailing her arms and that it appeared that § 87(2)(b) was trying to get in between PO Velasquez and § 87(2)(b). During his CCRB interview, PO Perez stated that § 87(2)(b) was bleeding from his nose, but neither PO Velasquez nor § 87(2)(b) had any visible injuries. During his interview with PBQN Investigations, PO Perez stated that PO Velasquez had scratch marks on his neck. PO Gomez grabbed § 87(2)(b) and took her to stand in front of the house. PO Gomez then grabbed PO Velasquez and walked him to the back of the driveway. PO Perez then grabbed § 87(2)(b) and told him to stand with § 87(2)(b) § 87(2)(b) and § 87(2)(b) told PO Perez and PO Gomez that PO Velasquez was a police officer. PO Velasquez confirmed that he was an off-duty police officer. While PO Velasquez was standing in the driveway with PO Gomez, § 87(2)(b) brought out PO Velasquez's identification. PO Velasquez was calm and waited in the driveway without making any further disturbance.

PO Perez stood with § 87(2)(b) and § 87(2)(b) in front of the house while PO Gomez spoke with PO Velasquez at the back of the driveway. PO Perez was attempting to keep § 87(2)(b) and § 87(2)(b) calm. However, § 87(2)(b) and § 87(2)(b) were screaming and cursing and attempting to go to the back of the house to continue fighting with PO Velasquez. Specifically § 87(2)(b) and § 87(2)(b) were calling PO Velasquez a “faggot” and a “square badge.” § 87(2)(b) and § 87(2)(b) also said that they wanted to press charges against PO Velasquez. § 87(2)(b) further told PO Perez at this time that PO Velasquez had punched her in the eye and given her a black eye. PO Perez did not see any bruising on § 87(2)(b)'s eye. Either § 87(2)(b) or § 87(2)(b) PO Perez could not recall which one, told PO Perez that PO Velasquez hit § 87(2)(b) in the nose. § 87(2)(b) was “bleeding a lot” and got the blood on

PO Perez's jacket. PO Perez told § 87(2)(b) to sit down until EMS came. § 87(2)(b) responded by saying, "oh I have HIV, I have HIV." PO Perez did not want § 87(2)(b)'s blood on him so he told § 87(2)(b) again to sit down. § 87(2)(b) would not sit down and § 87(2)(b) repeatedly tried to maneuver past PO Perez in order to get to PO Velasquez. PO Perez repeatedly told § 87(2)(b) and § 87(2)(b) to stay where they were. § 87(2)(b) and § 87(2)(b) were not listening to PO Perez and PO Perez had difficulty controlling them. § 87(2)(b) was very angry that PO Perez and PO Gomez did not immediately arrest PO Velasquez. § 87(2)(b) stated that she was going to get PO Perez and PO Gomez fired for taking PO Velasquez's side. PO Perez said that he raised his voice in order to try and control the § 87(2)(b) however, he said that he never used any harsh language. PO Perez said that he did not recall using any profanity with them, and he said that he did not say, "shut the fuck up," or the did not want § 87(2)(b)'s "fucking blood on him."

PO Perez could not hear the conversation between PO Gomez and PO Velasquez. PO Gomez radioed for a supervisor to respond to the scene and PO Perez radioed through central for EMS. Sgt. Minch came to the scene about 5 to 7 minutes after he was called. Sgt. Minch spoke with § 87(2)(b) and § 87(2)(b) at the scene, but PO Perez did not recall hearing the conversation. EMS arrived around the time Sgt. Minch arrived. EMS looked at § 87(2)(b) but § 87(2)(b) refused medical attention. PO Perez could not recall if EMS looked at § 87(2)(b). EMS did not look at PO Velasquez. PO Velasquez did not have any visible injuries, and PO Velasquez was not complaining of any injuries. PO Perez took PO Velasquez, § 87(2)(b), and § 87(2)(b) back to the precinct. A van transported § 87(2)(b) and § 87(2)(b) to the Precinct. PO Perez stated that he did not see PO Velasquez hit either § 87(2)(b) or § 87(2)(b). He did not see PO Velasquez push § 87(2)(b). He did not hear PO Velasquez threaten the § 87(2)(b) that they would spend a night in jail and he did not hear PO Velasquez call § 87(2)(b) "white trash."

PO Edgar Gomez was interviewed by Sgt. Liju Thotam of the Patrol Borough Queens North Investigations Unit on November 21, 2005 (enc. 40). § 87(2)(g)

§ 87(2)(b). PO Gomez recalled that he spoke to PO Velasquez after he was separated from § 87(2)(b) and § 87(2)(b). PO Gomez asked PO Velasquez what was going on. PO Velasquez told PO Gomez that he was a police officer. PO Velasquez told PO Gomez that he was inside § 87(2)(b) when he heard § 87(2)(b) arguing with somebody outside. PO Velasquez said that he went outside and § 87(2)(b) began yelling at him. PO Velasquez further said that he told § 87(2)(b) not to talk to § 87(2)(b) rudely. PO Velasquez said that § 87(2)(b) told him to "go fuck himself" and that § 87(2)(b) then took a "swing" at him. PO Velasquez told PO Gomez that he swung at § 87(2)(b) after § 87(2)(b) swung at him.

Sgt. Charles Minch's Memobook (enc. 42a-c):

19:35 34 assault at § 87(2)(b) remove two complainants and two witnesses to 110 Precinct in van 5666; Remove MOS Paulo Velasquez to 110 Precinct with § 87(2)(b); complainant claims MOS struck in nose and mouth causing swelling and bleeding; female complainant states MOS struck her in face causing swelling to left side of face; complainants were irate and irrational at time of arrival; male was not intoxicated but had a strong odor of alcohol on his breath; Duty Captain Shanley notified.

Sgt. Minch was interviewed by Capt. Scott Shanley on November 22, 2005 (enc. 43). § 87(2)(g)

On July 12, 2005, Sgt. Minch was working as the patrol supervisor. At around 7:35 p.m., PO Perez and PO Gomez called over the radio stating that there was an assault at § 87(2)(b) and asked Sgt. Minch to come to the scene. Sgt. Minch arrived at the scene at approximately 7:40 p.m. Sgt. Minch said that when he arrived PO Perez, PO Gomez, PO Velasquez and approximately 2 other officers were present. § 87(2)(b) and § 87(2)(b) were standing on the front stoop with approximately three adult female civilians, who appeared to be their family members.

§ 87(2)(b) and § 87(2)(b) were screaming, "Who does he think he is, he is a police officer, he can't do this to us." Sgt. Minch felt that the other civilians were escalating the situation by "riling up" § 87(2)(b) and § 87(2)(b). These women were doing this by yelling comments such as, "Who is he to do this, he can't do this, he beat them up." PO Paulo Velasquez was standing quietly and calmly alone at the back of the driveway and was not responding to the civilians' comments.

When Sgt. Minch arrived, PO Perez and PO Gomez approached Sgt. Minch's car and appraised him of the situation. Sgt. Minch then went and spoke with § 87(2)(b) and § 87(2)(b). Sgt. Minch spoke with both of them at the same time. § 87(2)(b) had a bloody nose and § 87(2)(b) had a "little bruise" on her left cheekbone. The § 87(2)(b) told Sgt. Minch that they share a common driveway with the § 87(2)(b) family. The § 87(2)(b) said that they had gotten into a verbal argument with § 87(2)(b) about the § 87(2)(b) children playing in the driveway. § 87(2)(b) then walked towards the house. PO Velasquez came outside. § 87(2)(b) argued with PO Velasquez about the children being in the driveway and PO Velasquez told § 87(2)(b) that § 87(2)(b) would be arrested if "he § 87(2)(b) kept carrying on." The § 87(2)(b) did not further specify what was said in the verbal dispute. Sgt. Minch said that the § 87(2)(b) said that PO Velasquez started "beating up" § 87(2)(b). However, Sgt. Minch said that the § 87(2)(b) did not clarify how PO Velasquez "beat up" § 87(2)(b). § 87(2)(b) said that he got a bloody nose during the altercation, however § 87(2)(b) did not clarify what caused the bloody nose and Sgt. Minch did not ask. § 87(2)(b) intervened and tried to pull PO Velasquez off of her husband. While § 87(2)(b) was intervening, PO Velasquez hit § 87(2)(b) in the face with a fist. The § 87(2)(b) claimed that PO Velasquez was the primary aggressor and they stated that § 87(2)(b) had not swung at the officer. § 87(2)(b) had watery eyes and a strong odor of alcohol on him. However, Sgt. Minch said that § 87(2)(b) did not seem to be intoxicated and he did not see any alcoholic beverages in the area.

After interviewing the § 87(2)(b) Sgt. Minch then interviewed PO Paulo Velasquez. The following is what PO Velasquez told Sgt. Minch. PO Velasquez said that he came outside because § 87(2)(b) was arguing with the § 87(2)(b) about the children being in the driveway. § 87(2)(b) started yelling that PO Velasquez was a cop. PO Velasquez told Sgt. Minch that while he was arguing with PO Velasquez, § 87(2)(b) swung at him. PO Velasquez told Sgt. Minch that § 87(2)(b) said to him, "Oh what are you going to do, arrest me?" PO Velasquez told § 87(2)(b) "If you swing at me one more time, I am going to arrest you." § 87(2)(b) took a swing at PO Velasquez. Next, "the off duty MOS, grabbed the guy § 87(2)(b) and they fell down to the ground." When asked to clarify how PO Velasquez said that he grabbed § 87(2)(b) Sgt. Minch said that PO Velasquez, "wrapped his arms around him § 87(2)(b) and took him down the ground and the complainant fell kind of turned as they were going down and fell I believe he said fell face first into the ground." When PO Velasquez and § 87(2)(b) fell, § 87(2)(b) was closest to the ground. § 87(2)(b) intervened at this point and tried to get PO Velasquez away from § 87(2)(b). When asked if PO Velasquez said that he hit § 87(2)(b) Sgt. Minch said, "Naw he said he didn't... I believe he said, I don't think he recalled if he did...like I said I didn't ask that many questions, so he didn't really tell me that so I really can't answer that." PO Velasquez told Sgt. Minch that he was not injured. Sgt. Minch removed PO Velasquez's police identification card and firearm as per procedure.

Sgt. Minch did not hear PO Perez tell either of the § 87(2)(b) to "shut the fuck up." Sgt. Minch did not hear any officer ever say to § 87(2)(b) "Get the fuck away from me because I don't want your blood all over me."

PO Jae Moon:

PO Moon was not interviewed by Patrol Borough Queens North Investigations § 87(2)(g)

Unusual Occurrence Report completed by Captain Scott Shanley on July 13, 2006 (enc. 49a-d):

Capt. Shanley noted that after PO Velasquez was transported to the 110th Precinct his weapons, shield, and identification card were removed for safekeeping. PO Velasquez was then placed on modified assignment. Capt. Shanley conferred with Jim Liander of the Queens District Attorney Integrity Unit. § 87(2)(g)

§ 87(2)(b) s Medical Records (enc. 45a-m):

§ 87(2)(a) PHL § 18(6)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b)

s Medical Records (enc. 46a-p):

§ 87(2)(a) PHL § 18(6)

Photos of the injuries sustained by § 87(2)(b) and § 87(2)(b) (enc. 8e-g, 10e-f):

§ 87(2)(b) has a clearly visible bruise under her left eye and no other apparent injuries to her face. § 87(2)(b) also has a visible red mark in the center of the lower part of her back near her spine. § 87(2)(b) has two red marks on the bridge of his nose and a small abrasion under his nose, but he has no other injuries to his face. § 87(2)(b) also has scratches on his left forearm.

Patrol Borough Queens North Investigations Unit Closing Report (47a-h):

The Queens North Investigations Unit closed their investigation into the incident in question as unsubstantiated because of “insufficient evidence to prove or disprove that P.O. Velasquez was the primary aggressor in the dispute.”

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians’ CCRB History (enc. 3, 4):

§ 87(2)(b) and § 87(2)(b) have not been involved in any other CCRB cases.

Officers’ CCRB History (1a-b):

No allegations have been substantiated against PO Paulo Velasquez or PO Michael Perez.

Conclusions and Recommendations

Undisputed/ Disputed Facts:

§ 87(2)(g) there is no dispute regarding the fact that PO Velasquez invoked his authority as a police officer by threatening to arrest § 87(2)(b) and § 87(2)(b) if they did not leave § 87(2)(b) § 87(2)(g)

There is, however, no dispute regarding the fact that § 87(2)(b) approached PO Velasquez, from behind, jumped on his back, and attempted to strike him while PO Velasquez was restraining § 87(2)(b) § 87(2)(g)

It is not disputed that PO Perez and PO Gomez were the first officers to respond to the scene of the dispute between the § 87(2)(b) and PO Velasquez. § 87(2)(g)

Assessment of Credibility:

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

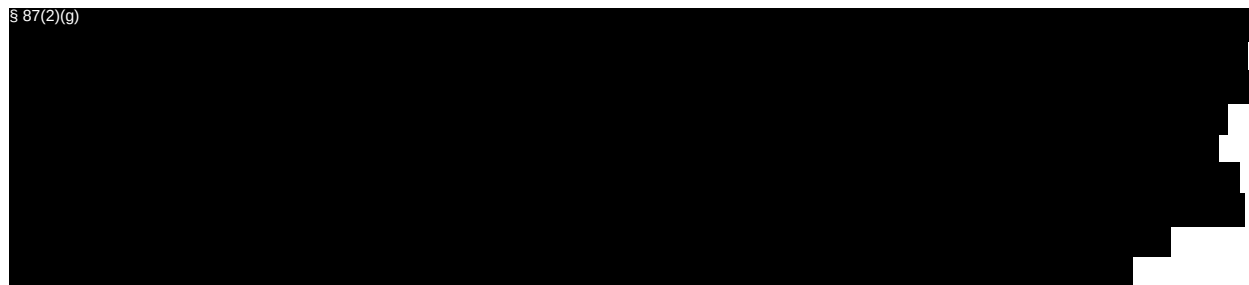
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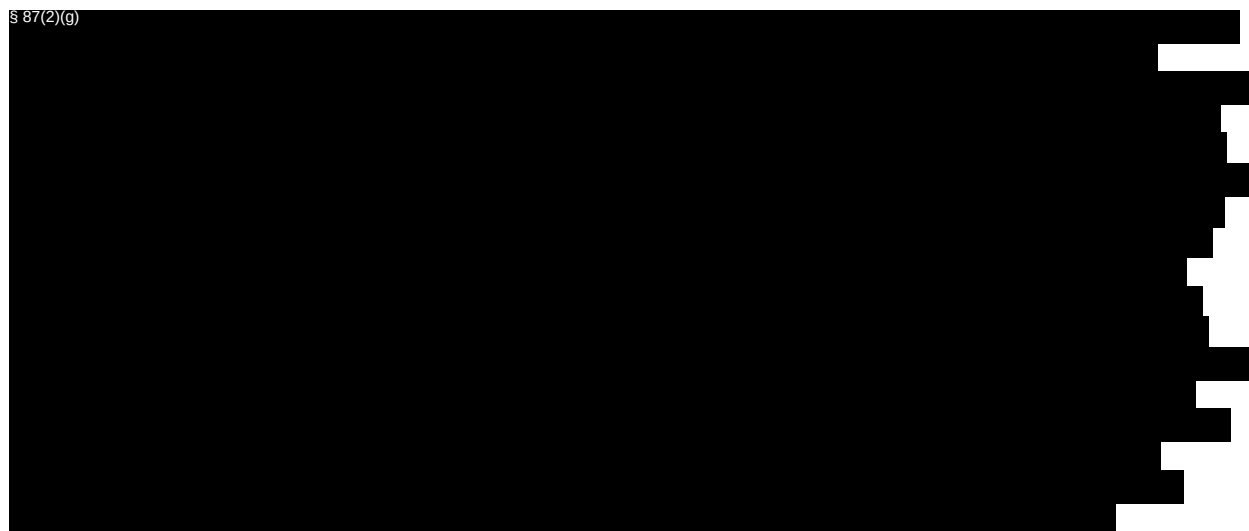
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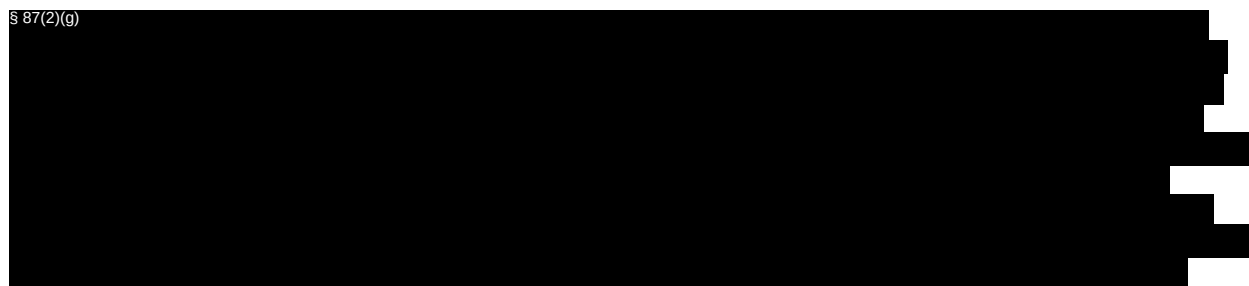
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§ 87(2)(g)

Allegation (A) Abuse of Authority: PO Paulo Velasquez threatened to arrest § 87(2)(b) *and* § 87(2)(b)

In her statement to the CCRB, § 87(2)(b) indicated that she was walking over to remove the children from the common driveway when PO Velasquez exited § 87(2)(b) and said, “Get the fuck out of here before you spend the night in jail.” In his statement to the CCRB, PO Velasquez admitted to threatening the § 87(2)(b) with a “night in jail,” but indicated that he did so only after § 87(2)(b) was asked to leave and indicated that he was not leaving. PO Velasquez also admitted to telling the § 87(2)(b) to “get the fuck out of here,” but he indicated that he stated this only after the § 87(2)(b) refused to leave after being threatened with arrest. § 87(2)(g)

All parties agree that § 87(2)(b) asked the § 87(2)(b) to remove their children from the common driveway. Section 140.05 of the Penal Law states that a “person is guilty of trespass when he knowingly enters or remains unlawfully in or upon premises.” Section 140.00 of the Penal Law stated that a person “remains unlawfully” when that person “defies a lawful order” not to remain that is “personally communicated to him by the owner of the premises or other authorized person.” § 87(2)(g)

§ 87(2)(b). As determined by the trial commissioner in *PD v. Grandstaff*, an officer who has the “requisite legal authority” to arrest an individual can threaten to arrest that individual in order to calm a “potentially aggressive situation.” § 87(2)(g)

As a result, it is recommended that Allegation (A) be exonerated.

Allegation (B) Offensive Language: PO Paulo Velasquez made remarks to § 87(2)(b) *and* § 87(2)(b) *based on ethnicity.*

§ 87(2)(b) and § 87(2)(b) both provided similar accounts of how PO Velasquez told § 87(2)(b) to get himself and his “white trash wife” off of his property. § 87(2)(g) § 87(2)(b) stated that PO Velasquez simply told § 87(2)(b) that the whole family was “fucking white trash.” As noted above, § 87(2)(b) and § 87(2)(b) alone, recalled that § 87(2)(b) called PO Velasquez a “spic” after PO Velasquez called him “white trash.” For his part, PO Velasquez stated that the conversation never included racial epithets of any kind. § 87(2)(g)

It is therefore recommended that Allegation (B) be unsubstantiated.

Allegation (C) Excessive Force: PO Paulo Velasquez used physical force against § 87(2)(b) § 87(2)(g)

§ 87(2)(b). PO Velasquez and § 87(2)(b) had been involved in a very heated verbal exchange prior to when their physical altercation occurred. § 87(2)(g)

it is recommended that Allegation (C) be unsubstantiated.

Allegation (D) Excessive Force: PO Paulo Velasquez used physical force against § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) alleged that PO Velasquez punched § 87(2)(b) multiple times in the back of the head after § 87(2)(b) fell to the ground. § 87(2)(g)

PO Velasquez was not punching § 87(2)(b) when PO Gomez and PO Perez arrived. § 87(2)(b) claimed that he sustained contusions to the back of his head because of the punches that PO Velasquez through. However, § 87(2)(b) never photographed these alleged injuries and there is no record that he ever complained of such injuries to medical personnel. Instead, photographs show only that § 87(2)(b) suffered a single bruise on his back. § 87(2)(g)

As a result, it is recommended that Allegation (D) be unfounded. § 87(2)(g)

Allegation (E) Excessive Force: PO Paulo Velasquez used physical force against § 87(2)(b)

In her statement to the CCRB, § 87(2)(b) freely admitted to jumping on PO Velasquez's back and slapping his head in order to remove him from her husband. § 87(2)(b) stated that when she first attacked PO Velasquez, he responded by turning around and punching her in the face. § 87(2)(g)

§ 87(2)(b) stated that she fell to the ground after being punched and then attempted to attack PO Velasquez once again. In her statement to the CCRB, § 87(2)(b) stated that PO Velasquez responded to her second attack by grabbing hold of her shoulders, lifting her up and throwing her into the air. § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) stated that PO Velasquez simply shoved § 87(2)(b). § 87(2)(g)

PO Velasquez did not tell § 87(2)(b) that he was under arrest. § 87(2)(g)

As a result, it is recommended that Allegation (E) be unsubstantiated.

Allegation (F) Discourtesy: PO Michael Perez spoke obscenely and rudely to § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) each stated that PO Perez told § 87(2)(b) to "shut the fuck up."

Though § 87(2)(b) was not present the entire time that PO Gomez and PO Perez were interacting with § 87(2)(b) and § 87(2)(b) it is worth noting that § 87(2)(b) did not report hearing any officer use foul language. Both PO Gomez and PO Perez denied that PO Perez ever told § 87(2)(b) to "shut the fuck up." By her own admission, § 87(2)(b) was yelling at PO Perez when she was allegedly told to "shut the fuck up" because she felt that PO Perez and PO Gomez were favoring PO Velasquez. For his part, PO Perez recalled that § 87(2)(b) and her husband were both yelling insults at Velasquez, cursing and attempting to start fighting with PO Velasquez again. § 87(2)(g)

Patrol Guide Procedure 104-1 dictates that officers shall be "courteous and respectful." Nevertheless, officers may use "ostensibly discourteous language" in order to "obtain needed cooperation" or to control a "stressful street situation" (PD v. Quinn Disciplinary Case No. 78163/02; PD v. Howard Disciplinary Case No. 78255102). § 87(2)(g)

It is therefore recommended that Allegation (F) be exonerated.

Allegation (G) Discourtesy: PO Michael Perez spoke obscenely and rudely to § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) each recalled that PO Perez said something along the lines of: “Get the fuck away from me, you are bleeding everywhere.” § 87(2)(b) recalled that PO Perez said this shortly after he and PO Gomez picked § 87(2)(b) up off of the ground when § 87(2)(b) was ranting, raving and bleeding profusely.

§ 87(2)(g)

Though he was not present to witness PO Perez’s entire interaction with § 87(2)(b) § 87(2)(b) did not recall any officer using foul language at the scene of the incident. As noted above, PO Perez stated that § 87(2)(b) bled on him and taunted him by indicating that his blood contained HIV. Nevertheless, PO Perez and PO Gomez denied that PO Perez told § 87(2)(b) to “get the fuck away” because he was bleeding. § 87(2)(g)

As a result, it is recommended that Allegation G be unsubstantiated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: